



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

October 16, 2015

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 16239
(FIRST REVISION)

EXPIRATION DATE: August 31, 2017

1. GRANTEE: Trinity Containers, LLC
Dallas, TX
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of thirty five (35) non-DOT specification "nurse tanks" manufactured by Trinity Containers, LLC which are identified in paragraph 7.(b)(i). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or use not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315(m)(1)(i) in that the "nurse tanks" were not manufactured in accordance with the ASME Code Section VIII, Division 1 incorporated by reference in the HMR.
5. BASIS: This special permit is based on the application of Trinity Containers, LLC dated August 26, 2015 submitted in accordance § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Ammonia, anhydrous	2.2	UN1005	None

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The packagings prescribed are non-DOT specification "nurse tanks" identified in paragraph 7.b.(i) below and meet the drawings, descriptions and calculations on file with the Office of Hazardous Materials Safety Approvals and Permits Division.

b. OPERATIONAL CONTROLS -

(i) "Nurse tanks" with the following serial numbers are authorized for use under the terms of this special permit:

1311430, 1311429, 1307041, 1307038, 1307037,
1307036, 1307034, 1307032, 1302617, 1302616,
1302254, 1302253, 1302252, 1302251, 1302248,
1301909, 1301896, 1301892, 1301313, 1301311,
1300880, 1300877, 1104705, 1104704, 1103940,
1103582, 1103138, 1103137, 1102415, 1102414,
1102413, 1102336, 1102314, 1102300, 1102230.

(ii) Trinity Containers, LLC must notify the owners of the "nurse tanks" identified in paragraph 7.b.(i) of this special permit informing them of the terms and conditions of the special permit in writing, and provide copies of this special permit to the "nurse tank" owners.

(iii) Trinity Containers, LLC must ensure that the "nurse tanks" subject to this special permit have been marked as indicated in paragraph 7.c. below.

October 16, 2015

c. MARKING - Each "nurse tank" authorized in paragraph 7.b.(i) must be marked "DOT-SP 16239" in accordance with 49 CFR 172.302(c).

8. SPECIAL PROVISIONS:

a. While Trinity Containers, LLC is the sole holder of this special permit, other persons who are not a holder of this special permit who receive or have received packagings covered by this special permit may reoffer them for transportation provided no modifications or changes are made to the packagings and the packagings are offered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

October 16, 2015

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm
Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: LM:dl